INTERNAL — DRAFT — [Counsel review required] — CEO eyes only

EXOS AEROSPACE — SSLC OPTION B ACQUISITION OFFER

Board Decision Summary · October 7, 2026

EXECUTIVE SUMMARY

Jon Quinn (CEO) has directed Exos to proceed with Option B: invoke §3 exclusivity of the May 2025 Asset Acquisition Agreement at the 2025 board-approved price, with an earn-out tied to Intuitive Machines (IM) tank deliveries and/or listed Exos stock post-RTO. Scorpius Space Launch Company (SSLC) debts are paid at face value at close, providing Jim Wertz's personal path to yes. This is separate from the ROFR the board declined; it proceeds on the signed, board-approved §3 exclusivity trigger.

DEAL TERMS (Option B)

Component	Amount	Notes
Base acquisition price	$3,360,000	§3 / §1 price; cash + stake credit
Cash at close	$2,510,000	Exos cash; from Series A first close
SSLC costs	$60,000	Seller's costs (§3)
Exos stake credit (18%)	($790,000)	Non-cash; existing 18% equity at 2021 basis
5% escrow holdback (§7, 12 mo.)	$168,000	Released at 12-month anniversary
SSLC debts assumed at face	~$500K (TBV)	Microcosm/Wertz notes + AP — to verify in SSLC QB
Earn-out i: IM tank revenue	5% of rev, $300K cap/yr, 3 yrs	Low/Base/High: $450K / $750K / $900K
Earn-out ii: Exos stock post-RTO	0.5% of FD shares, 12-mo lockup	Low/Base/High: $600K / $1.25M / $2.1M
TOTAL CONSIDERATION (Base, combined)	$5,860,000	Low: $4.91M | Base: $5.86M | High: $6.86M

TBV = to be verified in SSLC QuickBooks (QB session expired 10/7; must verify before signing).

1-YEAR AND 5-YEAR HEADLINE NUMBERS (Exos + SSLC Consolidated)

All figures management assumptions. Exos standalone from v15 commission-only baseline. SSLC FY27 IM tanks $5M confirmed by Markus Rufer (10/2). Post-acquisition: 15% commission eliminated as intercompany.

Metric	FY27 (Year 1)	FY31 (Year 5)	Notes
SSLC Revenue	$5,500,000	$16,500,000	IM tanks $5M firm + $0.5M other FY27
Exos Standalone Revenue	$2,600,000	$16,000,000	v15 baseline excl. SSLC commission
Net Consolidated Revenue	$7,600,000	$31,600,000	After intercompany elimination ($500K FY27)
SSLC EBITDA	+$1,240,000	+$6,015,000	Positive from close; accretive to Exos
Exos Standalone EBITDA	−$4,000,000	+$5,000,000	BLK3 investment phase FY27; improving FY28+
Consolidated EBITDA	−$2,760,000	+$11,015,000	Exos development costs dominate FY27
v15 Benchmark SSLC revenue	$900,000	$21,000,000	Old acquisition model; Option B FY27 ×6.1×
Cash need at close	$3,010,000	—	Acquisition $2.51M + WC bridge $0.5M

Series A first close	$10,000,000	—	Covers acquisition, WC bridge, and Exos ops
Net remaining for Exos ops	$6,990,000	—	After SSLC cash deployment

EARN-OUT OPTIONS (Two Variants; Combined Recommended)

	Earn-Out i: IM Tank Revenue	Earn-Out ii: Exos Stock	Combined
Structure	% of SSLC IM hardware revenue	Exos common stock at listing	Both i + ii
Mechanics	5% annual, $300K cap, 3-year term	0.5% of FD shares; 12-mo lockup	Each on own schedule
Low	$450,000	$600,000	$1,050,000
Base	$750,000	$1,250,000	$2,000,000
High	$900,000	$2,100,000	$3,000,000
Dilution	None	~0.5% of FD shares	~0.5% — non-material
Rationale	Rewards SSLC sellers for IM growth they enabled	Aligns SSLC sellers with Exos upside post-RTO	Best protection for all parties

RISKS AND MITIGATIONS

§3 Trigger Gap

- **Risk:** FNEX/Ainigma is an advisor/broker-dealer, not itself an 'investor or lender'. SSLC counsel (Danny) may challenge the trigger.
- **Mitigation:** Attach countersigned FNEX agreement + investor/sponsor use-of-proceeds letter naming the SSLC asset purchase. [Confirm D-7281974 is countersigned.]

He-Tank Dispute (MC #3056)

- **Risk:** Rev3 GHe tank fails at 4,400 psi proof; Morey questions it as a flight article. Exos faces ~$175K to take to flight.
- **Mitigation:** Plan B: qualified COPV ≤$250K (Jon cap), $0.3M gap. Resolves cleanly post-acquisition as intercompany — the legal dispute disappears. Decision D-7281994.

SSLC Cash Risk

- **Risk:** SSLC cash at QB date: $198K. Needs $0.3–0.7M to finish $984K in prepaid work. Risk of distress before close.
- **Mitigation:** Option C (held): prepaid BLK3 tank PO $300–700K as bridge. [Counsel: insider lending.] OR close quickly before cash depletes.

Related-Party / Governance

- **Jon Quinn:** on both boards. Jon recuses from SSLC board vote; sends as Exos CEO only. Eqvista engaged for fairness opinion.
- **Disinterested directors:** Markus Rufer and Bob approve on SSLC side; Jon abstains.
- **Counsel:** [Keyes — review §3 still in force + not 'agreement to agree' before sending §3 notice.]

Timing

- **Exclusivity window:** 90 days from ~Oct 8 = ~Jan 6, 2027. RTO close ~Mar 2027. Request extension proactively under the 'not unreasonably withhold' clause.
- **Jon in Japan:** Oct 8 – Oct 29. Named Exos officer signs while away. Reply-by date to Jim/board to be confirmed.

ASKS — Board Decision Points

#	Ask	Owner	Timing
1	Go/No-Go: Option A, A+B (recommended), or A+B+C?	Jon (CEO)	Today 10/7
2	Confirm earn-out variant: tank-only, stock-only, or combined?	Jon (CEO)	Today 10/7

3	Confirm FNEX agreement is countersigned (D-7281974)?	Jon	Before send
4	Obtain investor use-of-proceeds letter naming SSLC purchase?	Jon + FNEX	Before send
5	Name Exos officer to sign while Jon is in Japan?	Jon (CEO)	Today 10/7
6	Set reply-by date to Jim Wertz?	Jon (CEO)	Today 10/7
7	Keyes (Counsel) review §3 + fairness opinion completion?	Counsel	Pre-send
8	Verify SSLC liabilities in QB before signing?	Exo / Jon	Before sign

Model file: drafts/EXOS_SSLC_OptionB_Acquisition_Model_2026-10-07.xlsx — all formulas, recalculates on input changes.
Draft message to Wertz/board: see SSLC_Exclusivity_Rescue_Options_and_Draft_Message_2026-10-07_DRAFT_v2.docx.
Decision card for Jon's approval is on Mission Control under task #3544.